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Case Number: 23STCV30347 Hearing Date: July 13, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

AMR

BELTAGUI, M.D.,

vs.

FRUIT

STREET HEALTH, P.B.C., et al.

Case No.:

23STCV30347

Hearing Date: July 13, 2026

Defendants

Fruit Street Health, P.B.C.'s, Laurence Girard's, and Christopher Meatto's motion for an order granting relief from any waiver of their right to trial by jury is denied.

Defendants Fruit Street Health, P.B.C. ("Fruit Street Health"), Laurence Girard ("Girard"), and Christopher Meatto ("Meatto") ("Defendant") move for an order granting relief from any waiver of their right to trial by jury. (Notice Motion, pg. 1; C.C.P. §631(g).)

Procedural History

Defendants filed the instant motion on May 5, 2026. Plaintiff Amr Beltagui, M.D. ("Beltagui") filed his opposition on June 29, 2026. Defendants filed their reply on July 6, 2026.

Legal Standard

A jury waiver cannot be withdrawn except by court permission, the granting or denial of which rests in the sound discretion of the trial judge. (Taylor v. Union Pacific Railroad Corp. (1976) 16 Cal.3d 893, 898.)

Despite waiver of the right to jury trial, the court "may, in its discretion upon just terms" allow a jury trial. (C.C.P. §631(g); Johnson-Stovall v. Superior Court (1993) 17 Cal.App.4th 808, 810.)

Although relief is discretionary, "as a general rule, a party should be relieved from a stipulation waiving a jury where the same can be done without injury to the other side, and without disarranging the orderly conduct of the business of the court." (Ferrea v. Chabot (1898) 121 Cal. 233, 235.)

The grounds for relief must be clearly stated and supported by a sufficient evidentiary showing. (See Cloud v. Market Street Railway Co. (1946) 74 Cal.App.2d 92, 103 [supporting motion with party affidavit].)

Although

the primary consideration is whether granting relief from jury trial waiver would result in any hardship to other parties or to the court, such as delay in rescheduling the trial for a jury or inconvenience to witnesses, a request for relief calls for consideration of multiple relevant factors. Other factors include the timeliness of the request, whether the requester is willing to comply with payment of jury fees requirements, and the reasons supporting the request, i.e. whether the motion “reflects a belated change of heart about trial tactics—or, worse, is being used as a pretext to obtain continuances and thus trifle with justice . . .” (TriCoast Builders, Inc. v. Fonnegra (2024) 15 Cal.5th 766, 774, 779-782, internal quotes omitted).)

Discussion

Defendants’ motion for relief from waiver of jury trial is denied.

As a preliminary matter, Defendants’ motion is untimely because they failed to immediately make a demand for trial by jury and deposit jury fees after Plaintiff’s counsel stated his belief that Plaintiff had waived trial by jury. (See Decl. of Mateescu ¶9, Exh. E [corresponding with Plaintiff’s counsel regarding proposed stipulation for jury trial on February 9, 2026, after substituting into the case on September 9 and 19, 2025].)

Defendants filed the instant motion on May 4, 2026, three months after becoming aware of Defendants’ failure to post jury fees. Defendants only posted jury fees on May 5, 2026, despite being aware of the failure to post fees as late as almost months prior.

It is understandable that new counsel would need time to familiarize themselves with facts and procedural issues. However, waiting three months to both post jury fees and file a motion after becoming aware of former counsel’s waiver does not demonstrate diligence or urgency.

California law is clear: an attorney’s deliberate strategic decision to waive a jury trial is binding on the client. (People v. Blackburn (2015) 61 Cal.4th 1113, 1124 [“in ordinary civil actions, the ‘general rule’ is that counsel has authority to bind the client in virtually all aspects of litigation, including waiver of the state constitutional right to a jury trial”]; In re Horton (1991) 54 Cal.3d 82, 94-95 [stating attorney “has general authority to control [the] procedural aspects of [the] litigation and to bind

[the] client in those matters”]; People v. Otis (1999) 70 Cal.App.4th 1174, 1176 [“Generally in civil cases, an attorney has complete charge and supervision to waive a jury.”].) A bench trial election is precisely the kind of tactical procedural decision that falls within counsel’s implied authority as “a necessary incident to the function the attorney is engaged to perform.” (Knabe v. Brister (2007) 154 Cal.App.4th 1316, 1324-1325.)

Here, Defendants’ former counsel affirmatively represented to this Court that Defendants waived their right to a jury; contrary to Defendants’ assertion, the waiver here is not a mere technical fee posting failure under C.C.P. §631(f)(5). The Joint Case Management Statement, specifically discussed and signed by both parties’ counsel after a meet and confer, and filed with this Court on July 30, 2025, expressly elected a nonjury trial in Section 5. That document is, by definition, a written consent to waiver filed with the court under C.C.P. §631(f)(2). The Judicial Council form itself instructs that this question “must be” answered. After a discussion, both counsel answered it deliberately by jointly agreeing to “a nonjury trial.”

Plaintiff’s counsel’s declaration also states that on July 29, 2025, at 4:30 pm, he had a telephone conversation with Defendants’ former counsel, Brandon Anand (“Anand”) concerning the upcoming Case Management Conference (“CMC”) for the instant matter. (Decl. of Buchwalter ¶2.) Plaintiff’s counsel declares that the conversation involved counsel filling out the Case Management Statement (“CMS”), wherein both men “went over the different items and [Plaintiff’s counsel] filled out the CMS based on [their] discussions.” (Decl. of Buchwalter ¶2.) Plaintiff’s counsel declares that he and Defendants’ former counsel “specifically discussed section 5 and the choice for a jury trial. We both agreed that this case was best suited for a jury trial. I filled out the CMS reflecting both our choices. I sent him a copy of the CMS that I filled out. Mr. Anand told me that if his client didn’t have any changes, he would sign the CMS and send it back to me. Mr. Anand sent me, via email, the CMS signed by him on July 30, 2025.” (Decl. of Buchwalter ¶2.)

Here, there is a demonstration that granting relief from jury trial waiver would result in hardship to Plaintiff’s counsel. Plaintiff argues in his opposition,

For a

bench trial, Plaintiff has been developing a trial brief presenting legal and factual arguments to a sophisticated jurist, identifying the specific documentary evidence and legal standards most persuasive to a judge, and preparing for findings of fact and conclusions of law rather than jury instructions. Plaintiff has not drafted jury instructions, prepared a verdict form, developed voir dire questions, or organized evidence for presentation to lay jurors. (See Buchwalter Decl. ¶ 4). Converting from a bench trial to a jury trial at this stage would still require Plaintiff to undertake an entirely different and substantial additional tier of trial preparation, a different format of trial brief, jury instructions, a verdict form, voir dire questions, and motions in limine framed for a lay jury rather than the Court. That this conversion now has more lead time than it did when the Motion was filed lessens the degree of disruption, but it does not eliminate the prejudice: Plaintiff still bears the cost and burden of redoing, rather than supplementing, its trial preparation, based on a trial format Defendants themselves selected. This is precisely the kind of prejudice contemplated by *TriCoast Builders, Inc. v. Fonnegra* (2024) 15 Cal.5th 766, 779-780] (primary consideration includes hardship to other parties such as delay or inconvenience resulting from the change in trial format).

(Opposition,
pg. 7.)

The Court is not convinced by Defendants' argument that failure to post jury fees was an inadvertent mistake rather than a belated change of heart. First, Defendant Meatto is a licensed attorney and serves as General Counsel of Defendant Fruit Street Health. (See Decl. of Buchwalter ¶3, Exh. B [responses to Interrogatories 1.1 and 2.7]). The claim that Defendant Meatto was unaware of the constitutional right to a jury trial and what it means to waive it strains credulity. Defendant Meatto's declaration at ¶5 says that he was not "adequately advised by prior counsel regarding the nature of the right to a jury trial, the consequences of waiving it, or the implications of checking the 'nonjury' box in the case management statement(s)." Defendant Meatto does not specify the advice he received (other than seeing the checked box requesting a bench trial) or

why it was inadequate. A general counsel, by definition a lawyer, cannot credibly claim he did not understand a bench trial election on a form that he reviewed and approved. The right to trial by jury is among the most

fundamental rights in litigation, and it is inconceivable that an attorney in any capacity would be unaware of it.

Second,

Defendants' counsel, after a discussion with Plaintiff's counsel, joined in the bench trial election knowingly, after meeting and conferring with Plaintiff's counsel and signed a second CMS seeking a bench trial. Defendants' counsel does not appear to have mistakenly marked the wrong box due to ignorance of the case. The joint CMS was the product of deliberate negotiation between counsel.

Accordingly, Defendants' motion is denied.

Conclusion

Defendants' motion for an order granting relief from any waiver of their right to trial by jury is denied.

Moving Party to give notice.

Dated:

July ____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court